

**JODY GRAHAM TRUSTEE OF THE LEE AND JANE HESS
FAMILY TRUST v. STATE OF CALIFORNIA, et al**

20CV44999

PLAINTIFF'S MOTION TO TAX COSTS

Plaintiff Trustee brought this action against defendant (State Teachers Retirement Service) for late payments of benefits. Defendant's demurrer was sustained by this Court.

California Code of Civil Procedure §1033.5(a)(14) states that recoverable costs include: "Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents."

In opposition to the motion, defendant's declaration offers cost estimates if filings were by an in-person filing agency but omits low-cost alternatives such as mail. There is no showing of a Court Order requiring electronic filing in this case or that other fees were incurred. The Court concludes defendant's incurred electronic filing fees represent an elective procedure of convenience by using a service when they can be directly e-filed through the court's website at no cost.

Plaintiff's motion to tax costs is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to CRC 3.1312 in conformity with this Ruling.

TRYON v. ANGELS GUN CLUB, INC.

17CV42160

CROSS-DEFENDANT'S MOTION FOR RECONSIDERATION OF ORDER GRANTING LEAVE TO THE FOURTH AMENDED CROSS-COMPLAINT

Cross-Defendant moves for reconsideration of the order granting leave to file a Fourth Amended Cross-Complaint.

The Fourth Amended Cross-Complaint (filed January 22, 2024) was filed to include as parties all Tryon family members in title to the subject real property. These persons were added to the lawsuit "as a technical matter." The latest cross-complaint was filed after a January 19, 2024, hearing where the Court granted leave to file the Fourth Amended Cross-Complaint. Cross-defendant argues for reconsideration of this ruling because cross-complainant had inexcusably delayed the request, that actual prejudice to the parties exists, and procedurally that facts in support of the motion were improperly included in the reply brief instead of the moving pleadings.

In ruling on the request to grant leave to file a Fourth Amended Cross-Complaint, the court gave great liberality to cross-complainant to file an amended pleading. (See *Cal. Gasoline Retailers v. Regal Petroleum Corp.* (1958) 50 Cal.2nd 844, 851.) However, where a would-be amendment prejudices a party with unnecessary delay in seeking amendment, the court may deny leave to file an amended pleading.

A Motion for Reconsideration is brought under Code of Civil Procedure Section 1008 and requires new law, facts or circumstances. A new law or different fact must be one that was not available to the party when the underlying motion was presented to the Court; a new or different fact is one that was not available to the party when the underlying motion was presented to the Court (*New York Times v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213; see e.g., *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The Court considered the argument of unnecessary delay when it exercised its discretion to grant leave to amend; no new facts, law, or circumstances have been provided with regard to the present motion.

Motion for Reconsideration of Order Granting Leave to File Fourth Amended Cross-Complaint is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Moving party to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.